

Several key changes to UAE Immigration

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In brief

The General Directorate of Residency and Foreigners' Affairs (GDRFA) and Ministry of Human Resources and Emiratisation (MOHRE) introduce several changes to immigration policies concerning: the immigration portal, work permit based penalties and visa on arrivals for Indian nationals.

In detail

Migration from eDNRD to GDRFA

Several key changes to procedural requirements have been introduced by GDRFA. Although these changes do not affect the underlying immigration framework, we do anticipate an effect on total lead times and, in turn, operational planning.

One of the key changes will be the migration of the existing "eDNRD" portal to the newly updated "GDRFA" portal which aims to work seamlessly with other immigration and employment portals. The new portal contains several new features and service request types that enable more efficient usage of all the facilities that are offered by Immigration. The new portal also aims to improve data-sharing between the MOHRE and GDRFA. This change comes in tandem with the launch of the new "Noqoodi" payment platform which is intended to be more intuitive.

In addition the GDRFA is working on a pilot program to replace physical residence visa "stickers" endorsed on passports with an electronic system that maintains records in the background. In such an instance, the Emirates ID would remain the primary source of identification and proof of legal residence in the UAE. This is in line with the government's recent decision to rename the Emirates ID Authority (EIDA) to the Federal Authority for Identity and Naturalisation (FAIN).

Changes to labour penalties

The MOHRE has amended the schedule of penalties applicable in instances of noncompliance with work permits. Notably, the penalties for:

- Failing to renew work permits (and MOHRE issued employment contracts) within 60 days have been lowered to AED 100 per month (previously AED 500 per month) and capped to a maximum of AED 2000; and
- Failing to submit an updated MOHRE issued employment contract within 60 days of the foreign national employee entering the country, or of there being a change to the employee's immigration status have been lowered to AED 100 per month (previously AED 500 per month) and capped to a maximum of AED 2000.

Visa-On-Arrival for Indian Nationals relaxed

Indian nationals with certain residency status' in the UK or EU member states can now obtain a visa-on-arrival. Prior to this a 14-day single- entry visa-on-arrival was issued to Indian nationals only if they held a valid United States visa or a green card. The effective date for this new status is yet to be confirmed by the authorities.

The takeaway

The migration from eDNRD to GDRFA is in line with the country's Vision 2021 that supports the move towards automation and electronic platforms. This more "seamless" approach continues to be fine-tuned and in the interim, local entities may experience some delays caused by system migration and technical issues.

Although the MOHRE's decision to lower penalties for entities that fail to issue (or renew) work permits in time does offer some relief, settling any outstanding dues with the authorities should be viewed as an issue of paramount importance, not only from a compliance perspective, but also from an operational effectiveness perspective. Companies with outstanding fines may experience restrictions on sponsorship privileges as well as other administrative sanctions.

The decision to ease visa requirements for Indian nationals is in line with a broader trend across the GCC where countries are allowing more and more nationalities to avail visa-on-arrival facilities. Companies should take note of this positive change.

We will continue to monitor the situation and revert with updates as soon as developments occur.

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